

SOFTWARE-AS-A-SERVICE AGREEMENT

Sample contract for Lexora platform testing • Effective Date: 2026-01-14

Parties. This Software-as-a-Service Agreement (the “Agreement”) is entered into between **Acme Analytics, Inc.** (“Provider”) and **Customer** (as identified in an applicable Order Form). This document is provided solely for demo/testing purposes and is not legal advice.

1. Definitions

“Services” means Provider’s hosted software platform and related support services. “Documentation” means Provider’s user guides. “Confidential Information” has the meaning in Section 7. “Order Form” means a mutually executed ordering document specifying fees and term.

2. Subscription and Access

Subject to Customer’s payment of Fees and compliance with this Agreement, Provider grants Customer a non-exclusive, non-transferable right to access and use the Services during the Term for Customer’s internal business purposes. Customer will not (a) reverse engineer the Services, (b) circumvent access controls, or (c) use the Services to build a competing product.

3. Fees and Payment

Customer will pay the subscription fees and any usage-based fees specified in the Order Form (“Fees”). Unless otherwise stated, invoices are due net fifteen (15) days. Overdue amounts accrue interest at 1.5% per month (or the maximum allowed by law, if less). Provider may suspend access for non-payment after providing written notice and a five (5) day cure period.

4. Term and Termination

4.1 **Term.** The initial term begins on the Effective Date and continues for twelve (12) months unless earlier terminated. 4.2 **Termination for Convenience.** Customer may terminate for convenience with thirty (30) days’ written notice; however, Fees are non-refundable and Customer remains responsible for all Fees through the end of the then-current subscription period. 4.3 **Termination for Cause.** Either party may terminate if the other party materially breaches and fails to cure within ten (10) days of written notice. 4.4 **Effect.** Upon termination, Customer’s access ends and Customer will delete any locally stored copies of Documentation.

5. Intellectual Property

Provider retains all right, title, and interest in and to the Services, Documentation, and all related intellectual property. Customer retains all rights in Customer Data. Customer grants Provider a worldwide, royalty-free license to host, copy, transmit, and display Customer Data solely to provide and improve the Services. Provider may use aggregated and de-identified usage data for analytics and product improvement.

6. Support and Service Levels

Provider will provide email support during business hours. Provider will use commercially reasonable efforts to make the Services available 99.5% of the time measured monthly, excluding scheduled maintenance and force majeure events.

7. Confidentiality

Each party may receive the other party's non-public business, technical, or financial information ("Confidential Information"). The receiving party will (a) use Confidential Information only to perform under this Agreement, (b) protect it using at least the same degree of care it uses for its own similar information (and no less than reasonable care), and (c) not disclose it except to employees/contractors with a need to know who are bound by confidentiality obligations. Confidentiality obligations survive for five (5) years following termination; trade secrets are protected for so long as they remain trade secrets.

8. Data Security and Privacy

Provider will maintain reasonable administrative, physical, and technical safeguards to protect Customer Data. Provider will notify Customer without undue delay after becoming aware of a confirmed security incident involving Customer Data. Customer is responsible for configuring user permissions and maintaining secure credentials. Customer represents that it has all rights and consents needed to provide Customer Data to Provider.

9. Insurance

Provider will maintain during the Term: (a) commercial general liability insurance with limits of at least \$1,000,000 per occurrence; (b) cyber liability insurance with limits of at least \$1,000,000; and (c) workers' compensation as required by law. Upon request, Provider will provide certificates of insurance.

10. Indemnification

10.1 Provider Indemnity. Provider will indemnify and defend Customer from third-party claims alleging that the Services infringe a U.S. patent, copyright, or trademark, and will pay resulting finally awarded damages and reasonable attorneys' fees, provided Customer promptly notifies Provider and cooperates. **10.2 Customer Indemnity.** Customer will indemnify and defend Provider from third-party claims arising from Customer Data or Customer's misuse of the Services. **10.3 Process.** The indemnifying party controls the defense and settlement, except it may not settle in a manner that admits liability or imposes obligations on the other party without the other party's prior written consent.

11. Limitation of Liability

11.1 Exclusion. Except for indemnification obligations, breach of confidentiality, or Customer's payment obligations, neither party will be liable for indirect, incidental, special, consequential, or punitive damages, or for loss of profits, revenue, data, or goodwill. **11.2 Cap.** Except for Customer's payment obligations and either party's willful misconduct, each party's total liability arising out of or related to this Agreement will not exceed the Fees paid or payable by Customer in the twelve (12) months preceding the event giving rise to the claim. **11.3 Essential Purpose.** The parties acknowledge these limitations allocate risk and form an essential basis of the bargain.

12. Assignment

Neither party may assign this Agreement without the other party's prior written consent, except to an affiliate or in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee agrees in writing to be bound by this Agreement. Any unauthorized assignment is void.

13. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, excluding its conflict of laws rules. The parties will first attempt in good faith to resolve disputes through executive escalation. Any lawsuit must be brought in the state or federal courts located in New Castle County, Delaware, and each party consents to personal jurisdiction and venue there.

14. Miscellaneous

This Agreement (including Order Forms) is the entire agreement and supersedes prior discussions. Amendments must be in writing signed by both parties. Notices will be sent to the addresses in the Order Form by certified mail or recognized courier. Force majeure excuses performance delays due to events beyond a party's reasonable control.

Signature blocks intentionally omitted for demo purposes.